

CONSTITUTION OF AUSTIN HEALEY OWNERS CLUB (NSW) INC

APPROVED BY SPECIAL RESOLUTION ON 3 DECEMBER 2025

Based on the Model Constitution – Schedule 1 to the *Associations Incorporation
Regulation 2022*.

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Part 1 Preliminary

1.1. Preamble

This constitution is based on the NSW Fair Trading Model Constitution (as amended).

For further information in respect of the *Associations Incorporation Act 2009* and the *Associations Incorporation Regulation 2016* (or as amended) refer to www.legislation.nsw.gov.au.

1.2. Definitions

(1) In this constitution:

“Act” means the Associations Incorporation Act 2009 as amended or replaced.

“Annual General Meeting” means a general meeting of the Club convened in accordance with clause 6.2 and clause 6.3.

“Associate Member” means a financial member of the Club who does not fulfil the ownership requirements of clause 4.1(2)(b).

“Club” means the Austin Healey Owners Club (NSW) Inc. ABN 87 630 303 136

“Club Magazine” means a Club-specific magazine or newsletter or similar, the provision of which may be included in membership fees, as determined by the Committee from time to time.

“Club Registrar” means the person elected at the most recent Annual General Meeting to maintain the register of cars for the purpose of Conditional Registration.

“Committee” means the Committee established in accordance with the Act to manage the affairs of the Club.

“Conditional Registration” means the scheme so named and administered by Transport for NSW (or its successors) allowing certain vehicles limited access to the road network.

“Concours D'Elegance” means the judging of Marque cars in accordance with the American d'elegance standard.

“Social General Meeting” means a general meeting of the Club convened in accordance with clause 6.1.

“Marque” is limited to all vehicles bearing the Healey name either on its own or in association.

“Member” means a financial member of the Club who fulfils the ownership requirements of clause 4.1(2)(b).

“Membership Secretary” means:

- (a) the person holding office under this constitution as Membership Secretary of the Club; or
- (b) if no such person holds that office, the President of the Club.

“National Magazine” means the journal of the Association of Australian Austin-Healey Clubs, as published from time to time.

“Non-Committee Positions” means those Club roles which are not either the Patron, Historian or an Office-Bearer.

“Office-Bearer” means a member of the Committee who is the holder of an office referred to in clause 5.2(1).

"Other Motor Club" means a club, body or organisation, corporate or incorporated, whose objects are principally the preservation of the use of motor vehicles, either in general, or by marque.

"Public Officer" means:

- (a) the person holding office under this constitution as Public Officer of the Club; or
- (b) if no such person holds that office, the Secretary or President of the Club.

"Regulation" means the Associations Incorporation Regulation 2022 as amended or replaced.

"Secretary" means:

- (a) the person holding office under this constitution as Secretary of the Club; or
- (b) if no such person holds that office, another Committee Member of the Club.

"Special General Meeting" means a general meeting of the Club other than an Annual or Social General Meeting and convened in accordance with clause 6.4.

"Special Resolution" means a resolution:

- (a) of which at least 21 days' notice has been given before the date on which the meeting is held, stating the terms of the resolution and that the resolution is intended to be passed as a Special Resolution; and
 - (b) which is supported by at least three-quarters of the votes cast by Members of the Club who, under this constitution, are entitled to vote on the proposed resolution.
- (2) In this constitution:
- (a) a reference to a function includes a reference to a power, authority and duty; and
 - (b) a reference to the exercise of a function includes, if the function is a duty, a reference to the performance of the duty.
- (3) The *Interpretation Act 1987* applies to this constitution as if it were an instrument made under the Act.

Part 2 Objects

The Club is formed with the following objects:

- (1) To:
 - (a) maintain a register of all Members' vehicles that are on Conditional Registration through the Club; and
 - (b) compile a register of all vehicles of the Marque in New South Wales.
- (2) To provide a forum for exchange of technical information, literature, spare parts, mechanical skills and every other material and facility in order that each vehicle of the Marque may be preserved, restored and maintained in the best possible condition.
- (3) To organise and to conduct for members, events of a social, informative or competitive nature, including Concours D'Elegance, sporting events, touring, and attendances at gatherings of any sport associated with the Marque or with any other motor vehicles, and to invite to selected events members of selected Other Motor Clubs, as appropriate.

- (4) To correspond as required or as desired with any other club and organisation within and without Australia that has as its object the promotion, preservation and maintenance of the Marque, and to co-operate with every such club or organisation which offers or desires assistance from or association with the Club in pursuit of these objects.
- (5) To foster driver education, safety, and courtesy on the roads and in all competitions in which members of the Club participate, and friendship and co-operation between members of the Club and those of Other Motor Clubs in pursuit of these objects.
- (6) To document and publicise the activities of the Club and the presence and maintenance of the Marque in Australia, utilising a Club Magazine, electronic presence, for example a Club website and/or social media presence, a library of technical and historical material, and such other means as the Committee may decide.

Part 3 Legal Capacity and Powers

In accordance with the Act, the Club has the legal capacity and powers of an individual.

Part 4 Membership

4.1. *Membership generally*

- (1) There are two main categories of membership: Member and Associate Member.
- (2) A person becomes a Member of the Club if:
 - (a) the person is a natural person; and
 - (b) has proved, in a manner satisfactory to the Committee, present or past ownership of a vehicle of the Marque; and
 - (c) the person has applied, been approved for membership of the Club by the Committee and paid the required fees.
- (3) A person becomes an Associate Member of the Club if:
 - (a) the person is a natural person; and
 - (b) the person has applied, been approved for membership of the Club by the Membership Secretary, the President, or in their absence, the Committee, and paid the required fees.
- (4) A Member or Associate Member is eligible to have a second person (e.g. partner, child or other person) as part of their membership, without payment of a further fee.
- (5) A person who has been expelled from membership shall not be eligible for membership again, unless the Club shall so determine at a general meeting.
- (6) There are two sub-categories of membership: Family Member and Overseas Member:
 - (a) Any child under 17 of a Member or Associate Member (not already included as the second person under subclause (4)) is eligible to join as a Family Member, upon payment of the required fee.
 - (b) A person who resides overseas is eligible to join as an Overseas Member, upon payment of the required fee.

4.2. *Rights of members*

- (1) A Member has the right to:
 - (a) Attend all meetings and functions of the Club;
 - (b) Vote at Club meetings;
 - (c) Stand for election or be appointed as an Office-Bearer in accordance with Section 5.3 of this constitution;
 - (d) Requisition a Special General Meeting of members; and
 - (e) Receive the Club Magazine and National Magazine.
- (2) An Associate Member has the right to:
 - (a) Attend all meetings and functions of the Club; and
 - (b) Receive the Club Magazine and National Magazine.
- (3) A Family Member has the right to attend all meetings and functions of the Club.
- (4) An Overseas Member has the right to receive the Club Magazine and National Magazine.

4.3. *Application for membership*

- (1) An application for membership of the Club shall be made in writing on the form approved by the Committee from time to time and made available to applicants either directly (by the Membership Secretary or other Committee member) or online through the Club's website and submitted to the Membership Secretary.
- (2) As soon as practicable after receiving an application for membership, the Membership Secretary:
 - (a) is authorised to approve an Associate Member application, subject to payment of fees, and if so approved, notify the applicant in writing (including by email or other electronic means) of that approval; or
 - (b) must refer a Member, Overseas Member or Family Member application to the Committee, which is to determine whether to approve or to reject the application.
- (3) Where the Committee determines to approve an application for membership, subject to payment of fees, the Membership Secretary shall, as soon as practicable after that determination, notify in writing (including by email or other electronic means) the applicant of that approval.
- (4) The Membership Secretary shall advise the Secretary and the Club Magazine Editor of the new membership, enter the applicant(s) name in the Register of Members and, upon the name being so entered, the applicant(s) becomes a member of the Club.

4.4. *Life Membership*

- (1) The Club may, by Special Resolution put to a general meeting, extend to selected persons an invitation to life membership which, if accepted, will entitle the life member to full membership rights and entitlements for life without further payment of a membership fee at any time. Acceptance of such an invitation will be considered automatic unless the nominee advises the Club that they do not accept the invitation.

- (2) Persons who may be selected for invitation to life membership shall include such persons who in the judgement of the Committee have by special achievement, endeavour or attribute made a significant and permanent or unique contribution to the fame or longevity of the Marque or of the Club, whether within or without New South Wales.

4.5. *Honorary Membership*

- (1) The Club may, by resolution put to a general meeting, extend to selected persons an invitation to become an honorary member of the Club without further payment of the annual membership fee for the next relevant year. Acceptance of such an invitation will be considered automatic unless the nominee advises the Club that they do not accept the invitation.
- (2) Persons who may be selected for invitation to honorary membership shall include such persons who in the judgement of the Committee have historical connections to the Marque.

4.6. *Patron*

- (1) The Club may, by resolution put to a general meeting, extend to a selected person nominated by the Committee, an invitation to become Patron of the Club which, if accepted, will entitle the person to full membership rights and entitlements without payment of a membership fee.
- (2) A person who may be selected for invitation to become Patron shall be a person who, in the judgement of the Committee, has elevated standing in the general motorsport and/or specific Marque arenas.
- (3) A person who accepts the invitation to become Patron will hold this office until such time as:
 - (a) the person rescinds the office;
 - (b) the person dies or is otherwise unable to continue to hold the office; or
 - (c) the Club, by resolution put to a general meeting, appoints a different person as Patron.

4.7. *Historian*

- (1) The Club may, by resolution put to a general meeting, extend to a selected person nominated by the Committee, an invitation to become Historian of the Club.
- (2) A person who may be selected for invitation to become Historian shall be a person who, in the judgement of the Committee, has deep and longstanding knowledge and experience of the Marque and its history.
- (3) A person who accepts the invitation to become Historian will hold this office until such time as:
 - (a) the person rescinds the office;
 - (b) the person dies or is otherwise unable to continue to hold the role; or
 - (c) the Club, by resolution put to a general meeting, appoints a different person as Historian.

4.8. *Cessation of membership*

A person ceases to be a member of the Club if the person:

- (1) dies; or

- (2) resigns membership; or
- (3) is expelled from the Club; or
- (4) fails to pay the annual membership fee under clause 4.12 within (1) month after the fee is due.

4.9. *Membership entitlements not transferable*

A right, privilege or obligation which a person has by reason of being a member of the Club:

- (1) is not capable of being transferred or transmitted to another person; and
- (2) terminates on cessation of the person's membership.

4.10. *Resignation of membership*

- (1) A member of the Club may resign from membership of the Club by providing the Membership Secretary with written notice of the member's intention to resign and the date on which the resignation is to become effective.
- (2) If a member of the Club ceases to be a member under subclause (1) and in every other case where a member ceases to hold membership, the Membership Secretary must make an appropriate entry in the register of members recording the date on which the member ceased to be a member.

4.11. *Register of members*

- (1) The Membership Secretary of the Club must maintain a register of members of the Club specifying the contact details of each person who is a member of the Club, together with the date on which the person became a member.
- (2) The register of members must be kept in New South Wales:
 - (a) at the main premises of the Club; or
 - (b) if the Club has no premises, at the address of the Membership Secretary.
- (3) The register of members must be made available for inspection, free of charge, by any Member of the Club at a general meeting, by way of email, or as otherwise agreed with the Membership Secretary.
- (4) A Member of the Club may obtain a copy of any part of the names and email addresses of members on the register on payment of a fee of not more than \$1 for each page copied.
- (5) If a member requests that any information contained on the register about the member (other than the member's name) not be available for inspection, that information must not be made available for inspection.
- (6) A Member must not use information about a person obtained from the register to contact or send material to the person other than for:
 - (a) the purposes of sending the person a Club Magazine or National Magazine, a notice in respect of a meeting or other event relating to the Club or other material relating to the Club; or
 - (b) any other purpose necessary to comply with a requirement of the Act or the Regulation.
- (7) If the register of members is kept in electronic form:
 - (a) it must be convertible into hard copy; and

- (b) the requirements in subclauses (2) and (3) apply as if a reference to the register of members is a reference to a current hard copy of the register of members.

4.12. Fees and subscriptions

In addition to any amount payable as a membership application fee, a member of the Club must pay to the Club an annual membership fee as determined by the Committee. Payment is due to be made by 30 June of the relevant year.

4.13. Members' liabilities

The liability of a member of the Club to contribute towards the payment of the debts and liabilities of the Club or the costs, charges and expenses of the winding up of the Club is limited to the amount, if any, unpaid by the member in respect of membership of the Club as required by clauses 4.3 and 4.12.

4.14. Resolution of disputes

- (1) A dispute between a member and another member (in their capacity as members) of the Club, or a dispute between a member or members and the Club, is to be referred to a Community Justice Centre for mediation under the Community Justice Centres Act 1983.
- (2) If a dispute is not resolved by mediation within 3 months of the referral to a Community Justice Centre, the dispute is to be referred to arbitration.
- (3) The Commercial Arbitration Act 2010 applies to a dispute referred to arbitration.

4.15. Disciplining of members

- (1) A complaint may be made to the Committee by any person that a member of the Club has:
 - (a) failed to comply with a provision or provisions of this constitution; or
 - (b) wilfully acted in a manner prejudicial to the interests of the Club.
- (2) The Committee may refuse to deal with a complaint if it considers the complaint to be trivial or vexatious in nature.
- (3) If the Committee decides to deal with the complaint, the Committee must:
 - (a) cause notice of the complaint to be served on the member concerned; and
 - (b) give the member at least 14 days from the time the notice is served within which to make submissions to the Committee in connection with the complaint; and
 - (c) take into consideration any submissions made by the member in connection with the complaint.
- (4) The Committee may, by resolution, expel the member from the Club or suspend the member from membership of the Club if, after considering the complaint and any submissions made in connection with the complaint, it is satisfied that the facts alleged in the complaint have been proved and the expulsion or suspension is warranted in the circumstances.
- (5) If the Committee expels or suspends a member, the Secretary must, within 7 days after the action is taken, cause written notice to be given to the member of the action taken, of the reasons given by the Committee for having taken that action and of the member's right of appeal under clause 4.16.
- (6) The expulsion or suspension does not take effect until the later of the following:

- (a) until the expiration of the period within which the member is entitled to appeal against the resolution concerned; or
- (b) if within that period the member exercises the right of appeal, unless and until the Club confirms the resolution under clause 4.16.

4.16. Right of appeal of disciplined member

- (1) A member may appeal to the Club in general meeting against a resolution of the Committee under clause 4.15, within 7 days after notice of the resolution is served on the member, by lodging with the Secretary a notice to that effect.
- (2) The notice may, but need not, be accompanied by a statement of the grounds on which the member intends to rely for the purposes of the appeal.
- (3) On receipt of a notice from a member under subclause (1), the Secretary must notify the Committee which is to convene a general meeting of the Club to be held within 28 days after the date on which the Secretary received the notice.
- (4) At a general meeting of the Club convened under subclause (3):
 - (a) the Committee and the member must be given the opportunity to state their respective cases orally or in writing, or both; and
 - (b) the members present are to vote by secret ballot on the question of whether the resolution should be confirmed or revoked; and
 - (c) the appeal is to be determined by a simple majority of the votes so cast.

Part 5 The Committee

5.1. Functions of the Committee

Subject to the Act, the Regulation and this constitution, and to any resolution passed by the Club in any general meeting, the Committee:

- (1) is to control and manage the affairs of the Club; and
- (2) may exercise all such functions as may be exercised by the Club, other than those functions that are required by this constitution to be exercised by a general meeting of Members of the Club; and
- (3) has power to perform all such acts and do all such things as appear to the Committee to be necessary or desirable for the proper management of the affairs of the Club, including the appointment of Club members to Non-Committee Positions.

5.2. Composition of Committee

- (1) The Committee is to consist of the following 8 Office-bearer roles:
 - (a) President,
 - (b) Vice-president,
 - (c) Secretary,
 - (d) Treasurer,
 - (e) Membership Secretary,
 - (f) Club Registrar,
 - (g) Editor, and
 - (h) Webmaster.

- (2) The number of individual Committee members collectively elected to those roles in accordance with clause 5.3 must be a minimum of 5.
- (3) A Committee member may not hold more than 2 offices other than at the express determination of the Committee, subject to subclause (2).
- (4) A Committee member may not hold the offices of both President and Vice-President.
- (5) Each member of the Committee is, subject to this constitution, to hold office until the end of the calendar year following the Annual General Meeting.
- (6) There is no maximum number of consecutive terms for which a Committee member may hold office.

5.3. Election of Committee members

- (1) Nominations of candidates for election as Office-Bearers of the Club:
 - (a) must be made in writing, signed by two Members of the Club and accompanied by the written consent of the candidate which may be endorsed on the nomination form as approved by the Committee from time to time and made available to applicants either directly (by the Secretary or other Committee member) or through the Club's website; and
 - (b) must be delivered to the Secretary of the Club at least 7 days before the date fixed for the holding of the Annual General Meeting at which the election is to take place.
- (2) If only one Member nominates for a particular position, that Member is taken to be elected to that position, subject to the normal voting process.
- (3) If no Member nominates for a particular position in accordance with subclause (1), verbal nominations are to be invited at the Annual General Meeting.
- (4) If insufficient further nominations are received, any vacant positions remaining on the Committee are taken to be casual vacancies.
- (5) If more than one Member nominates for a particular position, a ballot is to be held.
- (6) The ballot for the election of Office-Bearers is to be conducted at the Annual General Meeting in such usual and proper manner as the Committee may direct.
- (7) A nomination of a candidate for election under this clause is not valid if that candidate has been nominated for election to another office at the same election unless a two thirds majority of Members eligible to vote approves such nomination.
- (8) A position of Office-Bearer may be held jointly by two persons simultaneously where this is approved by the majority of votes by those present in person at the relevant Annual General Meeting.
- (9) A person nominated as a candidate for election as an Office-Bearer must be a Member of the Club.

5.4. Secretary

- (1) The Secretary of the Club must, as soon as practicable after being appointed as Secretary, lodge notice with the Club of his or her address, if the Club does not already hold such information.
- (2) It is the duty of the Secretary to:
 - (a) keep minutes, in written or electronic form, of:
 - a all appointments of Office-Bearers and other non-Committee appointments;
 - and

- b the names of all attendees present at a Committee meeting or a general meeting; and
 - c all proceedings at Committee meetings and general meetings; and
- (b) keep records of correspondence received and issued by the Club.
- (3) Wherever possible, minutes of proceedings at a meeting must be accepted by the next meeting following publication of those minutes. If applicable, appropriate amendments to the former minutes shall be recorded in the latter meeting's minutes and the former minutes amended accordingly.

5.5. Treasurer

It is the duty of the Treasurer of the Club to ensure:

- (1) that all money due to the Club is collected and received and that all payments authorised by the Club are made; and
- (2) that correct books and accounts are kept showing the financial affairs of the Club, including full details of all receipts and expenditure connected with the activities of the Club.

5.6. Casual vacancies

- (1) In the event of a casual vacancy occurring in the membership of the Committee, the Committee may appoint a Member of the Club to fill the vacancy and the Member so appointed is to hold office, subject to this constitution, until the conclusion of the original term.
- (2) A casual vacancy in the office of a member of the Committee occurs if the member:
 - (a) dies, or
 - (b) ceases to be a member of the Club, or
 - (c) resigns from office by written notice given to the Secretary, or
 - (d) is removed from office by the Club under this clause, or
 - (e) is absent from 3 consecutive meetings of the Committee without the consent of the Committee, or
 - (f) becomes an insolvent under administration within the meaning of the *Corporations Act 2001* of the Commonwealth, or
 - (g) is prohibited from being a director of a company under the *Corporations Act 2001* of the Commonwealth, Part 2D.6, or
 - (h) is convicted of an offence involving fraud or dishonesty for which the maximum penalty is imprisonment for at least 3 months, or
 - (i) becomes a mentally incapacitated person.

5.7. Removal of Committee members

- (1) The Club at a general meeting may by resolution remove any member of the Committee from the office of member before the expiration of the member's term of office and may by resolution appoint another person to hold office until the expiration of the term of office of the member so removed.

- (2) If a member of the Committee to whom a proposed resolution referred to in subclause (1) relates makes representations in writing to the Secretary or President (not exceeding a reasonable length) and requests that the representations be notified to the members of the Club, the Secretary or the President may send a copy of the representations to each Member of the Club or, if the representations are not so sent, the member is entitled to require that the representations be read out at the meeting at which the resolution is considered.

5.8. Committee meetings

- (1) The Committee must meet at least 3 times in each period of 12 months at such place and time as the Committee may determine.
- (2) Additional meetings of the Committee may be convened by the President or by any member of the Committee.
- (3) The procedure for calling and conducting business at a meeting of a subcommittee is to be as determined by the subcommittee.
- (4) Members, including holders of non-Office Bearer roles, may also attend and speak at Committee meetings, but do not have voting rights.

5.9. Notice of Committee meeting

- (1) Oral or written notice of a meeting of the Committee must be given by the Secretary or President to each member of the Committee at least 48 hours (or such other period as may be unanimously agreed on by the members of the Committee) before the time appointed for the holding of the meeting.
- (2) Notice of the meeting must specify the general nature of the business to be transacted at the meeting and no business other than that business is to be transacted at the meeting, except business which the Committee members present at the meeting unanimously agree is urgent business.

5.10. Quorum

- (1) The quorum for a Committee meeting is 3 Committee members.
- (2) No business is to be transacted by the Committee unless a quorum is present and if, within half an hour of the time appointed for the meeting, a quorum is not present, the meeting is to stand adjourned to the same place and at the same hour of the same day in the following week, unless otherwise communicated to Committee members before the day to which the meeting is adjourned).
- (3) If at the adjourned meeting a quorum is not present within half an hour of the time appointed for the meeting, the meeting is to be dissolved.
- (4) If the number of Committee members is less than the number required to constitute a quorum for a Committee meeting, the Committee members may appoint 1 or more members of the Club as Committee members to enable the quorum to be constituted. A Committee member so appointed holds office only for the duration of that Committee meeting.

5.11. Presiding Committee member

- (1) The following Committee member presides at a meeting of the Committee:
 - (a) the President;
 - (b) if the President is absent – the Vice-President;

- (c) if both the President and Vice-President are absent – 1 of the members present at the meeting, as elected by the other members.
- (2) The member presiding at the meeting has:
 - (a) a deliberative vote; and
 - (b) in the event of an equality of votes – a second or casting vote.

5.12. Use of technology at Committee meetings

- (1) A Committee meeting may be held at 2 or more venues using any technology approved by the Committee that gives each of the Committee's members a reasonable opportunity to participate.
- (2) A Committee member who participates in a Committee meeting using that technology is taken to be present at the meeting and, if the member votes at the meeting, is taken to have voted in person.

5.13. Delegation to sub-committees

- (1) The Committee may:
 - (a) establish 1 or more subcommittees to assist the Committee to exercise the Committee's functions, and
 - (b) appoint 1 or more members of the Club to be the members of the subcommittee.
- (2) The Committee may delegate to the subcommittee the exercise of the Committee's functions specified in the instrument, other than:
 - (a) this power of delegation, or
 - (b) a duty imposed on the Committee by the Act or another law.

5.14. Voting

A decision supported by a majority of the votes cast at a meeting of the Committee or a subcommittee at which a quorum is present is the decision of the Committee or subcommittee.

5.15. Acts valid despite vacancies or defects

- (1) Subject to clause 5.10(1), the Committee may act despite there being a casual vacancy in the office of a Committee member.
- (2) An act done by a Committee or subcommittee is not invalidated because of a defect relating to the qualifications or appointment of a member of the Committee or subcommittee.

5.16. Transaction of business outside meetings or by telephone or other means

- (1) The Committee may transact its business by the circulation of papers, including by electronic means, among all Committee members.
- (2) If the Committee transacts business by the circulation of papers, a written resolution, approved in writing by a majority of Committee members, is taken to be a decision of the Committee made at a meeting of the Committee.
- (3) The Committee may transact its business at a meeting at which 1 or more Committee members participate by telephone or other electronic means, provided a member who speaks on a matter can be heard by the other members.

- (4) The member presiding at the meeting and each other member have the same voting rights as they would have at an ordinary meeting of the Committee for the purposes of:
 - (a) the approval of a resolution under subclause (2), or
 - (b) a meeting held in accordance with subclause (3).
- (5) A resolution approved under subclause (2) must be recorded in the minutes of the meetings of the Committee.

Part 6 General Meetings

6.1. Social General Meetings

The Club shall hold a meeting for members and visitors, generally each month, at a location, date and time as determined by the Committee.

6.2. Annual General Meetings - holding of

The Club must hold its Annual General Meeting within 6 months after the close of the Club's financial year.

6.3. Annual General Meetings - calling of and business at

- (1) The Annual General Meeting of the Club is, subject to the Act and to clause 6.2, to be convened on the date and at the place and time as the Committee thinks fit.
- (2) In addition to any other business which may be transacted at an Annual General Meeting, the business of an Annual General Meeting is to include the following:
 - (a) to confirm the minutes of the last preceding Annual General Meeting and of any Special General Meeting held since that meeting;
 - (b) to receive from the Committee reports on the activities of the Club during the last preceding financial year;
 - (c) to elect Office-Bearers of the Club; and
 - (d) to receive and consider any financial statement or report required to be submitted to members under the Act.
- (3) An Annual General Meeting must be specified as such in the notice convening it.

6.4. Special General Meetings - calling of

- (1) The Committee may, whenever it thinks fit, convene a Special General Meeting of the Club.
- (2) The Committee must, on the requisition in writing of at least 5 per cent of the total number of Members, convene a Special General Meeting of the Club.
- (3) A requisition of Members for a Special General Meeting:
 - (a) must be in writing; and
 - (b) must state the purpose or purposes of the meeting; and
 - (c) must be signed by the Members making the requisition; and
 - (d) must be lodged with the Secretary; and
 - (e) may consist of several documents in a similar form, each signed by one or more of the Members making the requisition; and
 - (f) may be in electronic form and signed and lodged by electronic means.

- (4) If the Committee fails to convene a Special General Meeting to be held within 1 month after that date on which a requisition of Members for the meeting is lodged with the Secretary, any one or more of the Members who made the requisition may convene a Special General Meeting to be held not later than 3 months after that date.
- (5) A Special General Meeting convened by a Member or Members as referred to in subclause (4) must be convened as nearly as is practicable in the same manner as Annual General Meetings are convened by the Committee.

6.5. Notice

- (1) The Secretary, or their delegate, is to provide notice of Social General Meetings to members within a reasonable time prior to such a meeting. This may be done by way of agreeing a schedule of meetings in advance, or individual meetings.
- (2) Except if the nature of the business proposed to be dealt with at an Annual or Special General Meeting requires a Special Resolution of the Club, the Secretary must, at least 14 days before the date fixed for the holding of such a meeting, give a notice to each member specifying the place, date and time of the meeting and the nature of the business proposed to be transacted at the meeting.
- (3) If the nature of the business proposed to be dealt with at an Annual or Special General Meeting requires a Special Resolution of the Club, the Secretary must, at least 21 days before the date fixed for the holding of such a meeting, cause notice to be given to each member specifying, in addition to the matter required under subclause (1), the intention to propose the resolution as a Special Resolution.

Note. A Special Resolution must be passed in accordance with section 39 of the Act.

- (4) No business other than that specified in the notice convening Annual or Special General Meetings is to be transacted at the meeting except, in the case of an Annual General Meeting, business which may be transacted under clause 6.3(2).
- (5) A Member desiring to bring any business before a Social General Meeting may give notice, either verbally or in writing, of that business to the President, Secretary or other Committee Member.
- (6) A Member desiring to bring any business before an Annual or Special General Meeting may give notice in writing of that business to the Secretary, who must include that business in the next notice calling a relevant general meeting given after receipt of the notice from the Member.
- (7) In the case of all general meetings, it shall be deemed that each member entitled to notice of the meeting has been served with the notice of meeting provided that due notice is included in the Club Magazine circulated to all members of the Club, and provided that the Club Magazine is sent to all such members to allow sufficient notice of the meetings.

6.6. Quorum

- (1) The quorum for a general meeting is 10 members of the Club entitled to vote under this constitution.
- (2) No business may be transacted at a general meeting unless a quorum is present.
- (3) If a quorum is not present within half an hour of the time the meeting commences, the meeting:
 - (a) if called on the request of members - is dissolved, or
 - (b) otherwise - is adjourned:
 - a to the same time of the same day in the following week, and

- b to the same place, unless another place is specified by the member presiding at the meeting at the time of the adjournment or in a written notice given to members at least 1 day before the adjourned meeting.
- (4) If a quorum is not present within half an hour of the time an adjourned meeting commences, but there are at least 5 members present, the members present constitute a quorum.

6.7. Presiding member

- (1) The President or, in the President's absence, the Vice-President, is to preside as chair at each general meeting of the Club.
- (2) If the President and the Vice-President are absent or unwilling to act, the Members present must elect one of their number to preside as chair at the meeting.

6.8. Adjournment

- (1) The Member presiding at a general meeting may, with the consent of the majority of the Members present, adjourn the meeting to another time and place.
- (2) The only business that may be transacted at the adjourned meeting is the business remaining from the meeting at which the adjournment took place.
- (3) If a meeting is adjourned for at least 14 days, the Secretary must give each member oral or written notice, at least 1 day before the adjourned meeting, of:
 - (a) the time and place at which the adjourned meeting will be held, and
 - (b) the nature of the business to be transacted at the adjourned meeting.

6.9. Making of decisions

- (1) A question arising at a general meeting of the Club is to be determined by either:
 - (a) a show of hands; or
 - (b) if on the motion of the chair or if 5 or more members present at the meeting decide, by a written ballot.
- (2) If the question is to be determined by a show of hands, a declaration by the chair that a resolution has, on a show of hands, been carried or carried unanimously or carried by a particular majority or lost, or an entry to that effect in the minutes of the Club, is evidence of the fact without proof of the number or proportion of the votes recorded in favour of or against that resolution.
- (3) If the question is to be determined by a written ballot, the ballot is to be conducted:
 - (a) immediately in the case of a poll which relates to the election of the chair of the meeting or to the question of an adjournment; or
 - (b) in any other case, in such manner and at such time before the close of the meeting as the chair directs;and the resolution of the ballot on the matter shall be deemed to be a resolution of the meeting on that matter.

6.10. Special Resolutions

The following matters require a Special Resolution:

- (1) Change in the Club's name, objects, or constitution;
- (2) Winding up the Club;

- (3) Distribution of surplus property on winding up;
- (4) Cancellation of registration of the Club;
- (5) Distribution of assets on cancellation of registration of the Club;
- (6) Transfer of registration of the Club to a different law; and
- (7) Election of life members.

Fair Trading NSW, or a relevant successor entity, must receive an application for authorisation of changes (a) to (f) within 28 days of the resolution.

6.11. Voting

- (1) On any question arising at a general meeting of the Club a Member has one vote only.
- (2) In the case of an equality of votes on a question at a general meeting, the chair of the meeting is entitled to exercise a second or casting vote.
- (3) A Member is not entitled to vote at any general meeting of the Club unless all money due and payable by the Member to the Club has been paid.

6.12. Ballots

- (1) The Club may hold a postal, electronic or combined ballot, as determined by the Committee, to decide any matter other than an appeal under clause 4.16.
- (2) The ballot must be conducted in accordance with Schedule 2 of the Regulation.

6.13. Use of technology at general meetings

- (1) A general meeting may be held at 2 or more venues using any technology approved by the Committee that gives each of the Club's Members a reasonable opportunity to participate.
- (2) A Member of the Club who participates in a general meeting using that technology is taken to be present at the meeting and, if the Member votes at the meeting, is taken to have voted in person.

6.14. Appointment of Proxies

- (1) Each Member shall be entitled to appoint another Member as proxy by notice given to the Secretary no later than 24 hours before the time of the meeting in respect of which the proxy is appointed.
- (2) The notice appointing the proxy shall be in the form as approved by the Committee from time to time and made available to Members either directly (by the Secretary or other Committee member) or through the Club's website.

6.15. Transaction of business outside meetings or by telephone or other means

- (1) The Club may transact its business by the circulation of papers, including by electronic means, among all members of the Club.
- (2) If the Club transacts business by the circulation of papers, a written resolution, approved in writing by a majority of Members, is taken to be a decision of the Club made at a general meeting.
- (3) The Club may transact its business at a general meeting at which 1 or more members participate by telephone or other electronic means, provided a member who speaks on a matter can be heard by the other members.

- (4) The Member presiding at the meeting and each other Member have the same voting rights as they would have at an ordinary meeting of the Club for the purposes of:
 - (a) the approval of a resolution under subclause (2), or
 - (b) a meeting held in accordance with subclause (3).
- (5) A resolution approved under subclause (2) must be recorded in the minutes of the meetings of the Club.

Note: The Act, section 37(3) and (4) contains requirements relating to meetings held at 2 or more venues using technology.

Part 7 Administration

7.1. Insurance

The Club may effect and maintain insurance as appropriate.

7.2. Funds – source

- (1) The funds of the Club are to be derived from joining fees and annual fees and subscriptions of Members, donations and, such other sources as the Committee determines.
- (2) All money received by the Club must be deposited as soon as practicable and without deduction to the credit of the Club's bank or other authorised deposit-taking institution account.
- (3) An exception to subclause (2) may apply where the recipient of the cash funds received is due to be reimbursed for authorised expenses, in which case these may be netted off, subject to the complete transactions being correctly recorded in the books of the Club.

7.3. Funds – management

- (1) Subject to any resolution passed by the Club at a general meeting, the funds of the Club are to be used solely in pursuance of the objects of the Club in such manner as the Committee determines.
- (2) With the exception of transfers between the Club's bank accounts, all financial transactions must be approved and/or signed by two authorised signatories.
- (3) Subclause (2) shall not apply to Club debit cards authorised by the Committee and issued to Members of the Club as determined by the Committee.

7.4. Club is non-profit

Subject to the Act and the Regulation, the Club must not conduct its affairs in a way that provides a pecuniary gain for any of its members.

Note: See the Act, section 40.

7.5. Change of name, objects and constitution

An application for registration of a change in the Club's name, objects or constitution in accordance with section 10 of the Act is to be made by the Public Officer or a Committee member.

7.6. Custody of books etc.

Except as otherwise provided by this constitution, all records, books and other documents relating to the Club must be kept in New South Wales in the custody of a Member of the Club, as the Committee determines.

7.7. Inspection of books etc.

- (1) The following documents must be open to inspection, free of charge, by a Member of the Club at any reasonable hour:
 - (a) records, books and other documents of the Club;
 - (b) this constitution; and
 - (c) minutes of Committee meetings and general meetings of the Club.
- (2) A Member of the Club may inspect a document referred to in subclause (1) in hard copy or electronic form, and also obtain a hard copy of any of the documents referred to in subclause (1) on payment of a fee of not more than \$1 for each page copied.
- (3) Despite subclauses (1) and (2), the Committee may refuse to permit a Member of the Club to inspect or obtain a copy of records of the Club that relate to confidential, personal, employment, commercial or legal matters or where to do so may be prejudicial to the interests of the Club.

7.8. Service of notices

- (1) For the purpose of this constitution, a notice may be served on or given to a person:
 - (a) by delivering it to the person personally; or
 - (b) by sending it by pre-paid post to the address of the person; or
 - (c) by sending it by electronic transmission to an address specified by the person for giving or serving the notice; or
 - (d) by inclusion in the Club Magazine.
- (2) For the purpose of this constitution, a notice is taken, unless the contrary is proved, to have been given or served:
 - (a) in the case of a notice given or served personally, on the date on which it is received by the addressee; and
 - (b) in the case of a notice sent by pre-paid post, on the date when it would have been delivered in the ordinary course of post; and
 - (c) in the case of a notice sent by electronic transmission, on the date it was sent or, if the machine from which the transmission was sent produces a report indicating that the notice was sent on a later date, on that date.

7.9. Financial year

The financial year of the Club commences each 1 July and ends each following 30 June.

7.10. Dissolution of the Club

The Club shall be dissolved if:

- (1) the total of Members of financial status is less than five, in which case dissolution shall be deemed to have taken place upon reduction to that number; or
- (2) a general meeting of the Club shall so determine by Special Resolution.

7.11. Distribution of property on winding up of the Club

- (1) Subject to the Act and the Regulation, in a winding up of the Club, any surplus property of the Club is to be transferred to another organisation or organisations with similar objects and which is not carried on for the profit or gain of its individual members.
- (2) In this clause, a reference to the surplus property of a Club is a reference to that property of the Club remaining after satisfaction of the debts and liabilities of the Club and the costs, charges and expenses of the winding up of the Club.

7.12. Conditional registration

- (1) The Club assists members in obtaining Conditional Registration through Transport for NSW.
- (2) Such assistance may include vehicle inspections to ensure the ongoing roadworthiness of members' vehicles, as well as certification to Transport for NSW that the vehicles are roadworthy and that the member is a current financial Member of the Club.
- (3) Assistance will only be provided to members who wish their Marque or other vehicles as agreed by the Club Registrar to obtain Conditional Registration through Transport for NSW.
- (4) The Club will ensure that its officers abide by such rules and regulations governing Conditional Registration as issued by Transport for NSW from time to time.
- (5) Members who hold Conditional Registration are required to abide by such rules and regulations governing Conditional Registration as prescribed by Transport for NSW from time to time.
- (6) The Club shall elect one (1) officer as Club Registrar to maintain an up to date register of vehicles in the Club including those on Conditional Registration. This officer will act as a certifying officer as specified in (2) above. The Committee may also appoint additional members to act as certifying officers as specified in (2) above.
- (7) Authorised Club events will be those events made known to members through the Club Magazine and/or at general meetings.
- (8) The vehicle on Conditional Registration shall be used in accordance with the rules published from time to time by Transport for NSW or its successor organisation.